

2:00 PM LINE 4

25-CIV-06841

ESTATE OF HUNTER BERGNER, ET AL VS. SAN MATEO COUNTY, ET AL

ESTATE OF HUNTER BERGNER
SAN MATEO COUNTY

DENISSE O. GASTELUM
ADAM M. STODDARD

MOTION TO STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendants County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher's Motion to Strike Portions of Plaintiffs' Complaint is **DENIED AS MOOT**.

Because the Court has sustained the demurrer with leave to amend as to each cause of action asserted against the moving Defendants, the operative pleading will be superseded by any amended complaint. The Motion to Strike directed to portions of the present Complaint is therefore **DENIED AS MOOT**, without prejudice to any appropriate challenge to an amended pleading.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 5

25-CIV-09348

RONNELL BUTLER, ET AL VS. THE NORTHWESTERN MUTUAL LIFE INSURANCE
COMPANY, ET AL

RONNELL BUTLER
THE NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY

MICHAEL C. COHEN
MICHAEL BEHBOUD

DEFENDANT THE NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY'S MOTION TO STRIKE AND MOTION TO STRIKE
PLAINTIFFS' FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiffs Latisa Brooks and Ronnell Butler filed oppositions to Defendant Northwestern Mutual Life Insurance Company's demurrer and motion to strike on August 27, 2026, six days after the August 21, 2026 deadline for filing opposition and on the date Defendant's replies were due. Defendant therefore did not have an opportunity to file replies addressing Plaintiffs' oppositions.

California Rules of Court, rule 3.1300(d) permits the Court, in its discretion, to consider late-filed papers. (See *Natkin v. California Unemployment Ins. Appeals Bd.* (2013) 219 Cal.App.4th 997, 1012–1013.) Plaintiffs' counsel submitted a declaration explaining that the oppositions were filed late because counsel inadvertently miscalendared the filing deadline. Under the circumstances, the Court exercises its discretion to consider the late-filed oppositions.

Defendant requests a continuance if the Court considers the oppositions so that it may have an opportunity to file reply briefs. The Court finds a brief continuance appropriate to avoid prejudice to Defendant and to permit full briefing of the issues presented.

Accordingly, the hearing on Defendant Northwestern Mutual Life Insurance Company's demurrer and motion to strike is **CONTINUED to November 12, 2026 at 2:00 p.m. in Department 2**. Defendant may file and serve reply briefs no later than five court days before the continued hearing date. No further briefing is permitted absent further order of the Court.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.
